Sonia Sotomayor

Sonia Sotomayor, 2009.**Sonia Sotomayor** (born June 25, 1954, Bronx, New York, U.S.) associate justice of the Supreme Court of the United States from 2009. She was the first Hispanic and the third woman to serve on the Supreme Court.

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Education and early legal career

The daughter of parents who moved to New York City from Puerto Rico, Sotomayor was raised in a housing project in the Bronx. After the death of her father, her mother worked long hours as a nurse to support the family. Sotomayor credits the episodes of the television crime show *Perry Mason* (1957–66) that she watched as a child with influencing her decision to become a lawyer. She graduated summa cum laude from Princeton University (B.A., 1976) before attending Yale Law School, where she worked as an editor of the *Yale Law Journal*. She graduated in 1979 and worked for five years as an assistant district attorney in New York county before pursuing private practice in a New York firm, where she worked on intellectual property and copyright cases.

In 1992 Pres. George H.W. Bush appointed Sotomayor to the U.S. District Court, Southern District of New York. As a federal judge, Sotomayor received national attention in 1995 when she ruled in favor of Major League Baseball players, then on strike, who were suing because of changes to the free agent system and salary arbitration rules. Sotomayor issued an injunction against the team owners, effectively bringing the eight-month strike to an end.

When Pres. Bill Clinton nominated Sotomayor to be a judge of the U.S. Court of Appeals for the Second Circuit in 1997, Republican senators delayed her appointment for more than a year because of their concerns that the position might lead to a Supreme Court nomination. After her appointment to the co

1998, Sotomayor was known for her candid, direct speaking style and for her carefully reasoned decisions.

Some of her decisions provoked controversy. In 2001 she ruled in favor of a woman with dyslexia who wanted more accommodations under the Americans with Disabilities Act in order to take the bar exam. In 2008, in *Ricci* v. *DeStefano*, Sotomayor and two other judges accepted a lower court's ruling against a group of white firefighters from New Haven, Connecticut, who had sued the city for discarding a test, the results of which had in effect barred all African American firefighters from promotion. In June 2009 the Supreme Court reversed Sotomayor's decision.

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Pres. Barack Obama meets with Sonia Sotomayor shortly before her nomination to the Supreme Court of the United States, May 21, 2009.

In May 2009 Pres. Barack Obama nominated Sotomayor to the Supreme Court in order to fill the vacancy left by departing justice David Souter. Sotomayor faced initial criticism for once stating that government policy was made in the Court of Appeals (as opposed to the legislative branch) and, in a different speech, that a Latina judge was better equipped to make judgments than a white man. Her diabetes also brought questions about her potential longevity on the Court. Sotomayor's confirmation hearings before the Senate Judiciary Committee of the U.S. Senate in July 2009 went smoothly, and the following month she was confirmed by the Senate in a vote of 68 to 31.

Majority opinions written or joined by Sotomayor

Sotomayor's first majority opinion for the Supreme Court, *Mohawk Industries, Inc.* v. *Carpenter* (2009), was a unanimous decision holding that disclosure orders that are issued by a court before its final judgment and are "adverse" to the attorney-client privilege may not be immediately appealed, because they can be adequately reviewed upon a regular appeal of the case to a higher court. Sotomayor's opinion was recognized as the first Supreme Court decision to use the term "undocumented immigrant" in place of "illegal alien."

Another notable majority opinion written by Sotomayor is *J.D.B.* v. *North Carolina* (2011), which held that a child's age is relevant to determining whether the questioning of a child by police constitutes "custody" under the Court's decision in *Miranda* v. *Arizona* (1966). The latter decision prohibited prosecutors from using statements made by criminal suspects in police custody who had not been previously informed of rights they may exercise to avoid self-incrimination. In *Mohamad* v. *Palestinian Authority* (2012), Sotomayor upheld a lower court's decision holding that the relatives of a naturalized U.S. citizen who had been arrested, tortured, and killed by officers of the Palestinian Authority could not file suit against the Palestinian Authority and the Palestine Liberation Organization (PLO) under the Torture Victim Protection Act (TVPA) of 1991, which authorized a "cause of action" against individuals "for acts of torture and extrajudicial killing committed under authority or color of law of any foreign nation." Sotomayor argued that because the term "individual" as used in the TVPA applied only to natural persons, "the Act does not impose liability against organizations." Sotomayor joined the Court's majority opinion in *United States* v. *Windsor* (2013), which declared unconstitutional a section of the federal Defense of Marriage Act (1996) that specifically denied to same-sex couples all federal benefits and recognition given to opposite-sex couples. In 2015 she joined the majority in *Obergefell* v. *Hodges*, which ruled that state bans on same-sex marriage and on recognizing same-sex marriages duly performed in other jurisdictions are unconstitutional. In 2020 she joined the Court's opinion in *Bostock* v. *Clayton County*, which held that the prohibition of sex discrimination in Section VII of the Civil Rights Act of 1964 encompasses, and thus bans, discrimination against gay and transgender persons. And in *Glossip* v. *Oklahoma* (2025), Sotomayor spoke for the Court's majority in ordering a new trial for a defendant who had been convicted of murder on the basis of testimony by an accuser who falsely denied that he had seen a psychiatrist—when in fact he was under treatment for bipolar disorder, and prosecutors in the case had concealed evidence to that effect.

Dissenting opinions written or joined by Sotomayor

As a consistently liberal justice in a Supreme Court whose majority, including Chief Justice John G. Roberts, Jr., was consistently conservative, Sotomayor frequently disputed the Court's rulings in dissenting opinions. Her dissents were often very

forcefully argued, reflecting the depth of her commitment to judicial liberalism and liberal values in general. Among her most famous and influential dissents were those issued in *Trump* v. *United States* (2024), which rendered U.S. presidents absolutely or presumptively immune from criminal prosecution for official acts, and *Trump* v. *CASA, Inc.* (2025), which ruled that federal courts may not issue nationwide preliminary injunctions but instead must limit their injunctions to the relief of the plaintiffs involved in the case. The decision overturned nationwide preliminary injunctions from three courts aimed at preventing Pres. Donald Trump from acting upon an executive order that eliminated birthright citizenship in the United States. In her dissent, Sotomayor declared that "the Court's decision is nothing less than an open invitation for the Government to bypass the Constitution." She concluded,

> The rule of law is not a given in this Nation, nor any other. It is a precept of our democracy that will endure only if those brave enough in every branch fight for its survival. Today, the Court abdicates its vital role in that effort....Rather than stand firm, the Court gives way. Because such complicity should know no place in our system of law, I dissent.

Sotomayor released a memoir, *My Beloved World*, in 2013.

Chelsey Parrott-Sheffer The Editors of Encyclopaedia Britannica

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